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× Backlash, Flock form changes

By **ASSOCIATED PRESS**

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By SARAH RANKIN and CLAUDIA LAUER, Associated Press

RICHMOND, Va. (AP) — Flock Safety, the surveillance technology company [increasingly under scrutiny](#) from lawmakers, civil liberties advocates and citizens across the U.S., announced Thursday it is making changes to its platform intended to quell privacy concerns and address documented abuses of its system by some members of law enforcement.

The company is one of the nation's largest providers of automated license plate readers, which document plate data and other vehicle characteristics as automobiles pass Flock's cameras. The thousands of law enforcement agencies that contract with the company can search and share that data across jurisdictions to inform investigations.

Police have credited the technology as an important crime-fighting innovation that has helped locate missing people and track suspects in violent crimes. But dozens of cities and agencies have nixed their relationships with Flock amid concerns that the data can be accessed for immigration enforcement or used in unauthorized surveillance, after a flurry of examples surfaced of law enforcement officers misusing the technology for personal searches.

CEO says changes will drive accountability

In an interview, Flock CEO Garrett Langley said many of the product changes will make what were once optional guardrails mandatory for its users to implement by Jan. 1.

Among them: All law enforcement customers will have to implement an audit tool that's intended to flag abnormal search behavior. When the system detects abnormal behavior, the user would be locked out pending an internal review, the company said in a description of the changes provided ahead of Thursday's announcement.

Flock, which says its customers own the data that the cameras record, is also shortening the standard data retention window from 30 days to seven. It said it will allow data to be preserved for longer when it is evidence tied to a case number.

Law enforcement users will now also be required to enter a code from their records management system tying each search to a specific case before it is run, something Langley said civil liberties advocates have long been calling for. Overrides for emergencies would be automatically flagged for review, the company said.

Customers will also be allowed to decide which offense types — such as homicide or arson — outside agencies can search their data for, which would allow a customer to block outside searches related to immigration enforcement, the company said.

Langley said that change will give individual cities and departments control to use the system in a manner "consistent with community values."

Critics of the company reacted skeptically to the changes, which they said appeared designed to address the growing bipartisan anger about the cameras but could still leave room for police to abuse the system.

The American Civil Liberties Union said in a blog post that the shortened evidence retention window could be “a step in the right direction,” but it characterized the other changes as “retreads” of inadequate safety measures.

Robert Frommer, a senior attorney at the Institute for Justice, a public interest law firm that’s led closely watched litigation over the technology, called the changes “window dressing” from a company in “panic mode.”

“This is window dressing that doesn’t address the fundamental problem, which is that police officers are the ones deciding who and when to search, and that should be done by judges with real warrants,” he said.

Andrew Guthrie Ferguson, a professor at the George Washington University Law School whose scholarship has focused on policing, big data surveillance and the Fourth Amendment, said he’s been surprised to see the “growing community backlash” against Flock specifically, given the technology is not new and other companies sell it as well.

But Flock and the movement against it have “captured people’s sense that maybe they don’t want to be surveilled all the time,” said Ferguson, a former public defender who earlier this year published a book about policing and surveillance.

More than 50 agencies or jurisdictions canceled, suspended or rejected a contract or deactivated their cameras since the beginning of the year, according to a tracker maintained by [DeFlock](#), a grassroots group formed to track the use of license plate reader technology and push back against it.

In Congress, Republican representatives filed at least two bills aiming to restrict the use of the technology in July.

Ian Adams, an associate professor of criminology at the University of South Carolina currently working on a Flock-related research study, said

“Anyone with policing experience could have reasonably foreseen that what have been termed as ‘curiosity searches’ by officers, searches for private reasons not related to police work, were going to be a problem this technology faced,” he added, noting that other technologies and platforms like the FBI’s Criminal Justice Information had faced those issues.

Successes and failures have captured attention

Flock, based in Atlanta, Georgia, often posts to its website what the company deems to be everyday examples of success stories for its cameras, including finding missing seniors and catching car thieves. But the tech has also been used in high-profile cases that have garnered national attention, such as the search for a suspect in a fatal shooting at Brown University and in tracking and arresting a former North Carolina police officer who authorities say had made threats that he planned to carry out a mass shooting at a festival in Louisiana.

Abuses have also drawn widespread attention. The Washington Post reported earlier this month finding nearly 50 instances of police officers charged or accused of using the cameras for unauthorized purposes, many for tracking current or former romantic partners or family members.

Just this week, six employees — including four officers — of the Savannah Police Department in Georgia were fired after they were accused of searching for friends and family using the tool and allowing an officer from an outside agency to use the city’s cameras.

The Savannah department said it was made aware of the misuse through Flock’s voluntary audit function.

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Lauer reported from Philadelphia.

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